

MASTER SERVICE AGREEMENT BETWEEN SYNERGY TECHNOLOGIES LLP AND STELLAR PARTNERS PVT. LTD.

Between: **Synergy Technologies LLP** (Service Provider) and **Stellar Partners Pvt. Ltd.** (Client)

Effective Date: 2022-12-21

Termination Date: 2023-12-21

Governing Law: the laws of Singapore

1. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

2. Term

This Agreement shall commence on the Effective Date, 2022-12-21, and shall continue until 2023-12-21, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

3. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Synergy Technologies LLP shall process personal data of Stellar Partners Pvt. Ltd.'s employees or customers only as necessary to perform the Services and strictly in accordance with Stellar Partners Pvt. Ltd.'s written instructions. Synergy Technologies LLP shall implement appropriate technical and organisational measures to protect such data.

4. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

5. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

6. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

7. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

8. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

9. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of Singapore. Subject to Clause 2, the courts of Kolkata shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

10. Indemnification

Synergy Technologies LLP shall indemnify, defend, and hold harmless Stellar Partners Pvt. Ltd. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Synergy Technologies LLP's breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

11. Audit Rights

Stellar Partners Pvt. Ltd. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Synergy Technologies LLP's records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Synergy Technologies LLP's operations. The cost of the audit shall be borne by Stellar Partners Pvt. Ltd., unless the audit reveals an overcharge of more than five percent (5%), in which case Synergy Technologies LLP shall bear the cost.

12. Intellectual Property

All intellectual property rights in deliverables created specifically for Stellar Partners Pvt. Ltd. under this Agreement shall vest in Stellar Partners Pvt. Ltd. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Synergy Technologies LLP grants Stellar Partners Pvt. Ltd. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Stellar Partners Pvt. Ltd.'s internal business purposes.

13. Payment Terms

Stellar Partners Pvt. Ltd. shall pay Synergy Technologies LLP a fee of Rs. 1,20,00,000 (Rupees Forty-three lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Stellar Partners Pvt. Ltd.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

14. Subcontracting

Synergy Technologies LLP shall not subcontract any material part of the Services without the prior written consent of Stellar Partners Pvt. Ltd.. Where subcontracting is permitted, Synergy Technologies LLP shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 1 and Clause 4.

15. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 43,00,000 (Rupees Forty-three lakh Only). This limitation does not apply to obligations arising from Clause 13 or indemnification obligations.

16. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Kolkata. The award shall be final and binding.

17. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this service agreement Agreement dated 2022-12-21 between Synergy Technologies LLP and Stellar Partners Pvt. Ltd.. "Services" means the services described in Clause 1. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

18. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

IN WITNESS WHEREOF

Service Provider

Synergy Technologies LLP

Signature: _____

Name: _____

Title: _____

Date: _____

Client

Stellar Partners Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____